

Brown (1991) 235 Cal. App. 3d 1097, 1107.) Here Code of Civil Procedure Sections 2030.290(a) and 2033.280 authorize a court to relieve a party from waiver by failure to timely respond to interrogatories and requests for admissions. Thus relief under Section 473 is unavailable to Defendants.

The motion to compel responses to Plaintiff's Requests for Admissions and Form Interrogatories is set for hearing on September 9, 2026. It is at that time and in that hearing that Defendant may seek relief from his failure to timely respond to Plaintiff's discovery.

Plaintiff's request for sanctions is **denied**.

14. 9:00 AM CASE NUMBER: C25-01748
CASE NAME: E. LELAND ROAD ASSOCIATES, LLC VS. BW E LELAND PITTSBURG LLC
MOTION TO BE RELIEVED AS COUNSEL BE RELIEVED AS COUNSEL SAM FERGUSON
FILED BY: E. LELAND ROAD ASSOCIATES, LLC
TENTATIVE RULING:

Motion withdrawn by moving party as moot. Counsel notified court that Substitution of Counsel notices are being filed.

15. 9:00 AM CASE NUMBER: C25-01748
CASE NAME: E. LELAND ROAD ASSOCIATES, LLC VS. BW E LELAND PITTSBURG LLC
MOTION TO BE RELIEVED AS COUNSEL BE RELIEVED AS COUNSEL BILL BERLAND
FILED BY: E. LELAND ROAD ASSOCIATES, LLC
TENTATIVE RULING:

Motion withdrawn by moving party as moot. Counsel notified court that Substitution of Counsel notices are being filed.

16. 9:00 AM CASE NUMBER: C25-01748
CASE NAME: E. LELAND ROAD ASSOCIATES, LLC VS. BW E LELAND PITTSBURG LLC
MOTION TO BE RELIEVED AS COUNSEL BE RELIEVED AS COUNSEL NOAH BERLAND
FILED BY: E. LELAND ROAD ASSOCIATES, LLC
TENTATIVE RULING:

Motion withdrawn by moving party as moot. Counsel notified court that Substitution of Counsel notices are being filed.

17. 9:00 AM CASE NUMBER: C26-00479
CASE NAME: EVAN OWENS VS. ELIZABETH LAYN
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT/CONT'D TO 9/4/26 FROM 8/21/26
FILED BY: LAYN, ELIZABETH G.
TENTATIVE RULING:

Before the Court is a demurrer by defendants to the first amended complaint. For the reasons set forth, the general demurrers to first and second causes of action are **sustained, with leave to amend**,